



Bill Number: H.B. 2033

Diaz Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Mason Holler

FLOOR AMENDMENT EXPLANATION

- Specifies that a school district or charter school may administer the statewide assessment in the form of a written test on approval by a vote of the school district governing board or charter school governing body only for an assessment that is administered to students in grades three through eight.

DIAZ FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2033
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-741, Arizona Revised Statutes, is amended to
3 read:

4 15-741. Assessment of pupils; definition

5 A. The state board of education shall:

6 1. Adopt rules for the purposes of this article pursuant to title
7 41, chapter 6.

8 2. Adopt and implement a statewide assessment to measure pupil
9 achievement of the state board-adopted academic standards in reading,
10 writing and mathematics in at least four grades designated by the state
11 board. EXCEPT AS PROVIDED IN SUBSECTION H OF THIS SECTION, the state
12 board shall determine the manner of implementation. The state board may
13 administer assessments of the academic standards in social studies and
14 science, except that a pupil shall not be required to meet or exceed the
15 social studies or science standards measured by the statewide assessment.

16 3. Ensure that the tests prescribed in this section are uniform
17 throughout this state.

18 4. Ensure that the tests prescribed in this section are able to be
19 scored in an objective manner and are not intended to advocate any
20 sectarian, partisan or denominational viewpoint.

21 5. Ensure that the tests prescribed in this article collect only
22 types of pupil nontest data that are approved by the state board at a
23 public meeting and published on the website of the state board pursuant to
24 paragraph 7 of this subsection.

25 6. Include within its budget all costs pertaining to the tests
26 prescribed in this article. If sufficient monies are appropriated, the
27 state board may provide achievement test services to school districts that

1 request assistance in testing pupils in grades additional to those
2 required by this section.

3 7. Survey teachers, principals and superintendents on
4 achievement-related nontest indicators, including information on
5 graduation rates by ethnicity and dropout rates by ethnicity for each
6 grade level. Before the survey, the state board shall approve at a public
7 meeting the nontest indicators on which data will be collected and shall
8 post in a prominent position on the home page of the state board's website
9 a link to the nontest indicators entitled "What nontest data does the
10 state of Arizona collect about Arizona pupils?". The linked webpage shall
11 state the types of data collected, the reasons for the collection of the
12 data and the entities with which the data is shared. In conducting the
13 survey and collecting data, the state board shall not violate the
14 provisions of the family educational rights and privacy act (P.L. 93-380),
15 as amended, or disclose personally identifiable information.

16 8. Establish a fair and consistent method and standard by which
17 test scores from schools in a district may be evaluated taking into
18 consideration demographic data. The state board shall establish
19 intervention strategies to assist schools with scores below the acceptable
20 standard. The state board shall annually review district and school
21 scores and shall offer assistance to school districts in analyzing data
22 and implementing intervention strategies. The state board shall use the
23 adopted test and methods of data evaluation for a period of at least ten
24 years.

25 9. Participate in other assessments that provide national
26 comparisons as needed.

27 10. Require in the contract for the statewide assessment pursuant
28 to this section that test scores and assessment data from the third grade
29 reading portion of the statewide assessment adopted pursuant to this
30 section be received by local education agencies on or before May 15 of
31 each academic year and that the scores and assessment data from all other
32 portions of the statewide assessment adopted pursuant to this section be
33 received by local education agencies on or before May 25 of each academic
34 year. The state board shall impose penalties on the contractor for scores
35 received after these dates. If the state board alters the statewide
36 assessment testing window for any reason, the state board may adjust the
37 dates by which local education agencies are required to receive the scores
38 and assessment data proportionately. If the state board adjusts the dates
39 by which local education agencies are required to receive the scores and
40 assessment data, the state board may not impose penalties on the
41 contractor unless the scores and assessment data are received after the
42 adjusted dates.

43 B. The achievement tests adopted by the state board as provided in
44 subsection A of this section shall be given at least annually. Nontest
45 indicator data and other information shall be collected at the same time
46 as the collection of achievement test data.

47 C. Local school district governing boards shall:

1 1. Administer the tests prescribed in subsection A of this section.
2 2. Survey teachers, principals and superintendents on
3 achievement-related nontest indicator data as required by the state board,
4 including information related to district graduation and dropout rates.
5 In conducting the survey and collecting data, the governing board shall
6 not violate the provisions of the family educational rights and privacy
7 act (P.L. 93-380), as amended, or disclose personally identifiable
8 information.

9 D. Any additional assessments for high school pupils that are
10 adopted by the state board after November 24, 2009 shall be designed to
11 measure college and career readiness of pupils.

12 E. If a high school pupil who is enrolled in a school district or
13 charter school participates in a nationally recognized assessment that is
14 both adopted by the state board of education pursuant to subsection A of
15 this section and administered by a person other than the school district
16 or charter school, the pupil or pupil's parent or guardian may submit the
17 pupil's official score report for the assessment to the school district or
18 charter school. On receipt of an official score report pursuant to this
19 subsection, the school district or charter school shall do all of the
20 following:

21 1. Record the score in the pupil's file.

22 2. Report the score to the state board of education and the
23 department of education.

24 3. If the pupil or pupil's parent or guardian submits an official
25 score report pursuant to this subsection to the school district or charter
26 school before the date on which the school administers the tests
27 prescribed in subsection A of this section, allow the pupil to opt out of
28 participation in the assessment that is administered by the school
29 district or charter school. If a pupil opts out of an assessment pursuant
30 to this paragraph, the school district or charter school shall use the
31 data from the pupil's official score report for the pupil's achievement
32 test data for the purposes of this section. This paragraph does not
33 require a school district or charter school to allow a pupil to opt out of
34 the collection of nontest indicator data or other information that is
35 collected about pupils who participate in the assessment that is
36 administered by the school district or charter school pursuant to this
37 section.

38 F. A test for penmanship shall not be required pursuant to this
39 article.

40 G. If a local education agency requests a raw data file of
41 assessment data for the pupils tested at the local education agency, the
42 department of education shall fulfill the request in a format that is
43 usable for assessment diagnostics within thirty days after the request.
44 The local education agency shall follow all applicable student data
45 privacy laws and may not publicly disclose individual student achievement
46 results.

Senate Amendments to H.B. 2033

1 H. A school district or charter school may administer the statewide
2 assessment in the form of a written test ~~if~~ FOR any of the following
3 ~~applies~~ REASONS:

4 1. A written test is required pursuant to an individualized
5 education program or a section 504 plan as defined in section 15-731.

6 2. To accommodate special circumstances.

7 3. For religious purposes.

8 4. On request by a pupil's parent or guardian.

9 5. [FOR AN ASSESSMENT THAT IS ADMINISTERED TO STUDENTS IN ANY OF
10 GRADES THREE THROUGH EIGHT,] ON APPROVAL BY A MAJORITY VOTE OF THE SCHOOL
11 DISTRICT GOVERNING BOARD OR CHARTER SCHOOL GOVERNING BODY.

12 I. For the purposes of this section, "nationally recognized" has
13 the same meaning prescribed in section 15-741.02.

14 Enroll and engross to conform

15 Amend title to conform

EVA DIAZ

2033DIAZ0210.docx

04/08/2026

02:10 PM

S: MH/ci

130YFLTUP